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Louisiana Nurse Practitioner Convicted of \$12M Medicare Fraud Scheme

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For Immediate Release

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A federal jury convicted a Louisiana nurse practitioner today for her role in an over \$12.1 million health care fraud scheme to defraud Medicare by ordering medically unnecessary cancer genetic tests for hundreds of patients she never met or examined.

According to court documents and evidence presented at trial, Scharmaine Lawson Baker, 58, of Richmond, Texas, served as a nurse practitioner and was an enrolled Medicare provider. She held herself out as an expert in Medicare regulations – authoring publications on medical necessity and patient-provider relationships – while actively violating those very standards.

“Scharmaine Lawson Baker shamelessly exploited her medical license and the trust of vulnerable patients to enrich herself through a multimillion-dollar genetic testing fraud,” said Acting Assistant Attorney General Matthew R. Galeotti of the Justice Department’s Criminal Division. “The defendant peddled false promises of free cancer screenings while pocketing kickbacks for medically unnecessary tests. The Criminal Division remains relentless in uncovering and prosecuting fraud against government programs and those who prey on victims for personal gain.”

“This conviction signals the end of a challenging and labor-intensive prosecution,” said Acting U.S. Attorney Michael M. Simpson for the Eastern District of Louisiana. “Medicare fraud schemes such as these, profoundly impact our society, not only because of the monetary loss sustained by our Medicare program, and the damages suffered by those who were victimized by the fraud, but also by the erosion of public trust in our institutions. The successful prosecution of this case exemplifies our commitment to seek justice for all victims of fraud as well as to preserve taxpayer confidence in our nation’s medical institutions as a whole.”

“Lawson Baker abused the privilege of her license to orchestrate a \$12 million Medicare fraud scheme,” said Assistant Director Jose A. Perez of the FBI Criminal Investigative Division. “In doing so she not only broke the law, she betrayed the trust of a system built to care for the sick, elderly and most vulnerable.

This was a calculated abuse of power fueled by greed. The FBI will continue to investigate those accused of exploiting our health care system at the expense of those suffering."

"This defendant brazenly exploited the federal health care system for personal profit. Her scheme to peddle millions of dollars of medically unnecessary genetic tests was not a mistake — it was a calculated crime. She preyed on vulnerable patients, siphoned taxpayer dollars, and turned health care into a tool for fraud. Her actions represent a deliberate betrayal of public trust and a flagrant abuse of those she was entrusted to serve," said Deputy Inspector General for Investigations Christian J. Schrank of the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). "HHS-OIG, in coordination with our federal and state partners, will continue to apply every available resource to detect and disrupt fraud schemes that seek to abuse the Medicare program and enrollees."

From 2018 to 2019, Lawson Baker worked as an independent contractor for a company that claimed to provide telehealth services. In her role, the defendant signed hundreds of orders for medically unnecessary cancer genetic testing after brief phone calls – typically lasting less than 60 seconds – and without conducting any physical exams of patients. Lawson Baker falsely diagnosed patients to justify the unnecessary tests, such as diagnosing male patients with cervical cancer that they did not have. Lawson Baker never reviewed any of the test results, including when the results showed that patients actually had variants predisposing them to certain cancers.

In furtherance of the scheme, Lawson Baker participated in phone calls misleading patients into believing they were being screened for cancer at no cost, despite the tests ordered not actually diagnosing patients with existing cancer. In doing so, she exploited the trust placed in licensed health care professionals and manipulated vulnerable patients.

In total, Lawson Baker caused over \$12.1 million in fraudulent Medicare claims and the labs involved in the scheme received over \$1.5 million in reimbursements for unnecessary testing. In exchange for signing these orders, Lawson Baker accepted kickbacks and bribes from the telehealth company – payments she later failed to disclose in her bankruptcy petition.

Lawson Baker was convicted of six counts of health care fraud. She is scheduled to be sentenced on Nov. 19 and faces a maximum penalty of 10 years in prison on each count. A federal district court judge will determine any sentence after considering the U.S. Sentencing Guidelines and other statutory factors.

HHS-OIG and FBI investigated the case.

Trial Attorneys Samantha Usher and Gary A. Crosby II of the Criminal Division's Fraud Section and Assistant U.S. Attorney Nicholas D. Moses for the Eastern District of Louisiana are prosecuting the case. Trial Attorney Kelly Z. Walters of the Criminal Division's Fraud Section assisted in the prosecution.

The Fraud Section leads the Criminal Division's efforts to combat health care fraud through the Health Care Fraud Strike Force Program. Since March 2007, this program, currently comprised of 9 strike forces operating in 27 federal districts, has charged more than 5,800 defendants who collectively have billed federal health care programs and private insurers more than \$30 billion. In addition, the Centers

for Medicare & Medicaid Services, working in conjunction with HHS-OIG, are taking steps to hold providers accountable for their involvement in health care fraud schemes. More information can be found at www.justice.gov/criminal-fraud/health-care-fraud-unit.

Updated July 25, 2025

Topic

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